

24SMCV06171 24SMCV06171

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24SMCV06171 Hearing Date: September 17, 2026 Dept: N

TENTATIVE RULING

Plaintiff Gabriel St. Angel's Motion to Compel the Deposition of Defendant David Powers and Request for Monetary Sanctions is GRANTED. The parties shall meet and confer regarding the deposition of Defendant David Powers to occur within thirty (30) days of entry of this order.

Plaintiff Gabriel St. Angel's request for monetary sanctions is GRANTED in the reduced amount of \$1,860.00 payable by Defendant David Powers and his counsel of record, jointly and severally, within thirty (30) days of entry of this order.

Plaintiff Gabriel St. Angel to give notice.

REASONING

Request for Judicial Notice

Defendant David Powers ("Defendant") seeks judicial notice of the Assembly Committee on Judiciary Report of Assembly Bill A.B. 1197 (2015-2016 Session) as amended on April 6, 2025 (analyzing current Code of Civil Procedure section 2025.220). Defendant's request for judicial notice is GRANTED pursuant to Evidence Code section 452, subdivision (c).

Motion to Compel Deposition

Plaintiff Gabriel St. Angel ("Plaintiff") moves the Court for an order overruling Defendant's objection to the use of Steno Agency, Inc. ("Steno") as the court reporter and compelling the deposition of Defendant to take place within ten days.

"If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).)

On April 13, 2026, Plaintiff's counsel served a Second Amended Notice of Deposition on Defendant scheduled for May 20, 2026. (Declaration of Robert J. Ounjian ("Ounjian Decl."), ¶ 2; Ex. 1.) On May 8, 2026, Defendant served an objection on the grounds that "Steno is a self-proclaimed litigation financing service that has an improper financial interest in the case" because Steno's "Delay Pay" arrangement constitutes improper litigation financing and Plaintiff failed to disclose this financing pursuant to Code of Civil Procedure section 2025.220(a)(8)(A) and Defendant's counsel was willing to produce Defendant for deposition if Plaintiff did not use Steno. (Ounjian Decl., ¶ 3; Ex. 2.)

"A party desiring to take the oral deposition of any person shall give notice in writing. The deposition notice shall state all of the following, in at least 12-point type . . . A statement disclosing the existence of a contract, if any is known to the noticing party, between the noticing party or a third party who is financing all or part of the action and either of the following for any service beyond the noticed deposition: (i) The deposition officer. (ii) The entity providing the services of the deposition officer." (Code Civ. Proc., § 2025.220. subd. (a)(8)(A).)

The Court overrules Defendant's objection to Steno because Steno is not providing any service beyond the noticed deposition. Steno is providing a service to conduct a deposition through a CSR and Steno's Delay Pay simply allows Plaintiff, or any of its clients, to pay for the noticed deposition at the conclusion of the litigation. (Declaration of Dylan Ruga ("Ruga Decl."), ¶ 1.) Plaintiff's counsel is obligated to pay Steno for all services rendered regardless of the outcome of the litigation. (Ruga Decl., ¶ 5.) Because Steno is not providing a service beyond conducting a deposition through a CSR, the Court grants the motion to compel deposition of Defendant.

Monetary Sanctions

Plaintiff requests monetary sanctions in the amount of \$2,460.00 against Defendant and his counsel, jointly and severally.

"If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.450, subd. (g)(1).)

Because Defendant's objection lacks merit, the Court finds that sanctions are warranted. Accordingly, the Court grants sanctions in the amount of \$1,860.00 (4.5 hours at \$400/hour plus \$60.00 filing fee) against Defendant and his counsel of record, jointly and severally.